

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
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Counterfactual First-Business-Day-Late Notice of Appeal

Filed: March 9, 2026 Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED

United States District Court for the Northern District of West Virginia

Proceeding: Notice seeking review of the supported Rule 54(b) judgment.

**Asterglen Freight Software, Inc., Plaintiff-Appellant, v. Copper Kestrel Logistics, LLC
and Meridian Silt Holdings, LLC, Defendants-Appellees.**

Notice is given that Asterglen Freight Software, Inc. appeals to the United States Court of Appeals for the Fourth Circuit from the separate partial final judgment entered February 4, 2026 in favor of Copper Kestrel Logistics, LLC on Count I, together with the January 12 memorandum opinion granting partial summary judgment and the February 4 supported certification order.

The certification order expressly determined that there was no just reason for delay and directed entry of judgment under Federal Rule of Civil Procedure 54(b). The judgment dismissed Count I with prejudice. This notice does not seek review of narrowed Count II against Meridian Silt Holdings, LLC, which remains pending, or of Copper Kestrel's former counterclaim, which was dismissed with prejudice.

Asterglen requests docketing of this appeal despite the timing disclosure stated on the following page.

Timing Disclosure

The appealed judgment was entered on Wednesday, February 4, 2026. No United States party or federal officer is involved. The ordinary thirty-day period under Federal Rule of Appellate Procedure 4(a)(1)(A) therefore expired on Friday, March 6, 2026.

This notice is filed on Monday, March 9, 2026, three calendar days after that deadline. March 9 is the first business day after the deadline, but the deadline itself fell on a business day. The weekend rule does not extend a period whose final day was Friday, March 6. Asterglen consequently acknowledges that this notice is late under the ordinary calculation.

Asterglen has not obtained an extension under Rule 4(a)(5), reopening under Rule 4(a)(6), or an order changing the date on which judgment was entered. No post-judgment motion listed in Rule 4(a)(4) was filed to suspend or restart the appeal period.

The filing is submitted to preserve Asterglen's request for appellate review and any argument it may lawfully present concerning relief from untimeliness. The notice itself does not ask the district court to find excusable neglect or good cause and should not be treated as an already granted extension.

Scope, Service, and Signature

The appeal concerns only Count I, Asterglen's contract claim seeking \$480,000 from Copper Kestrel. Asterglen intends to argue that the district court misapplied Section 9.2 of the April 15, 2024 Pilot License when it treated written notice and a fifteen-calendar-day cure opportunity as prerequisites to termination and breach damages.

This notice identifies the judgment and the court to which appeal is taken. It does not alter the district court's schedule for narrowed Count II, revive Copper Kestrel's dismissed counterclaim, or stay proceedings. Asterglen recognizes that the court of appeals will independently determine its jurisdiction, including the consequence of the March 9 filing date.

The notice has been transmitted through the district court's filing system and served on organizational counsel for Copper Kestrel and Meridian Silt on March 9, 2026. The district clerk is requested to transmit the notice and docket entries necessary for appellate docketing.

Respectfully submitted for Asterglen Freight Software, Inc.

Counsel for Asterglen Freight Software, Inc. Authorized counsel designation

Service certified March 9, 2026.